

VibePick - GDPR Data Protection Notice

1. About This Notice

This GDPR Data Protection Notice is issued in accordance with Articles 13 and 14 of the General Data Protection Regulation (EU) 2016/679. It explains, in plain and transparent language, how VibePick collects, uses, stores, and protects your personal data, and sets out your rights as a data subject.

This Notice should be read together with the Privacy Policy (which provides more detailed information on data processing practices) and Terms of Service. In the event of any conflict between this Notice and the Privacy Policy, the Privacy Policy shall prevail.

2. Who Is the Data Controller?

The data controller for your personal data is the VibePick project author, operating within the context of an academic thesis at a higher education institution in Romania, European Union.

As the data controller, the author determines the purposes (why) and the means (how) of processing your personal data. It is responsible for ensuring that your data is processed lawfully, fairly, and transparently.

3. What Personal Data Is Processed

VibePick processes only the personal data that is necessary for the stated purposes. It does not collect sensitive personal data (special category data under GDPR Article 9) such as health data, biometric data, racial or ethnic origin, religious beliefs, or political opinions.

Data Category	Specific Data Elements	Source
Identity	Full name, email address	Provided by you at registration
Credentials	Password (stored as bcrypt hash only)	Provided by you at registration
Preferences	Favourite genres, preferred streaming platforms	Provided by you during onboarding
Mood Data	Mood category, timestamp, optional free text	Provided by you during use
Viewing Activity	Films watched, wishlisted, clicked; timestamps	Generated by your interactions
Ratings	Helpfulness rating (1–5 stars) per recommendation, timestamp	Provided by you during use
Research Data	Recommendations shown, scores used, recommendation mode, session	Generated automatically by the system
Session Data	JWT authentication token (stored in browser localStorage)	Generated automatically at login

4. Purposes of Processing and Legal Basis

Under GDPR Article 6, a lawful basis must be identified for each processing activity.

Purpose	Legal Basis	Details
Account creation & login	Art. 6(1)(b) — Contract	Necessary to provide the platform
Personalised recommendations	Art. 6(1)(b) — Contract	Core service functionality

Purpose	Legal Basis	Details
Mood logging & preference storage	Art. 6(1)(a) — Consent	You consent by entering mood data
Research & algorithm evaluation	Art. 6(1)(f) — Legitimate interests	Academic thesis research; balanced against user rights
Account management & data export	Art. 6(1)(b) — Contract	Enabling you to exercise your rights
Security & fraud prevention	Art. 6(1)(f) — Legitimate interests	Protecting the platform and users
Compliance with legal obligations	Art. 6(1)(c) — Legal obligation	Including GDPR compliance itself

4.1 Legitimate Interests Assessment

Where VibePick relies on legitimate interests (Article 6(1)(f)), it has carried out a balancing test to ensure interests do not override your fundamental rights and freedoms. The legitimate interest in conducting academic research is considered proportionate given:

- The data is used only to evaluate recommendation algorithms, not for commercial gain;
- No sensitive personal data is processed under this basis;
- Data is anonymised before inclusion in any published research outputs;
- You have the right to object to processing based on legitimate interests at any time.

5. Recipients of Personal Data

VibePick does not sell, rent, or share your personal data with third parties for commercial purposes. Personal data may be shared only in the following limited circumstances:

TMDB API	Film metadata retrieval only. No personal data is transmitted. TMDB is not a recipient of your personal data.
Academic Supervisors	May have access to anonymised research data and platform logs for thesis supervision purposes. No individual personal data is shared.

No personal data is transferred to any data processor outside the direct academic thesis context. No cloud hosting services, third-party analytics, or advertising networks are used.

6. International Transfers

Your personal data is processed and stored exclusively within the European Economic Area (EEA). VibePick does not transfer personal data to countries outside the EEA.

All processing infrastructure operates within Romania. TMDB API requests are initiated from VibePick's server and contain no personal user data.

7. Retention Periods

VibePick does not retain personal data only for as long as necessary for the purposes described in this Notice. The table below sets out our retention periods:

Data Category	Retention Period	Deletion Trigger
Account & identity data	While account is active	Account deletion by user
Mood logs & activity	While account is active	Account deletion by user
Recommendation session data	While account is active	Account deletion by user
Helpfulness ratings	While account is active	Account deletion by user

Data Category	Retention Period	Deletion Trigger
Anonymised research data	Up to 5 years post-thesis	Research publication lifecycle
Authentication tokens (JWT)	Browser session / localStorage	User logout or localStorage clear
Security & access logs	Up to 90 days	Rolling 90-day deletion cycle

8. Your Data Subject Rights

Under the GDPR you have the following rights. These are not absolute rights, exceptions may apply in specific circumstances.

Your Right	GDPR Article	How to Exercise in VibePick
Right of Access	Article 15	Privacy & Data page → "Export My Data"
Right to Rectification	Article 16	Your Account page → edit name, email, password
Right to Erasure	Article 17	Your Account page → "Delete Account"
Right to Portability	Article 20	Privacy & Data page → "Export My Data" (JSON format)
Right to Restrict	Article 18	Contact us via institutional channels
Right to Object	Article 21	Contact us via institutional channels

Your Right	GDPR Article	How to Exercise in VibePick
Right to Withdraw Consent	Article 7(3)	Delete your account at any time
Right Not to be Profiled	Article 22	VibePick does not perform automated decision-making with legal effects
Right to Complain	Article 77	Lodge complaint with ANSPDCP at www.dataprotection.ro

8.1 Right of Access

You have the right to obtain confirmation of whether VibePick is processing your personal data, and if so, to receive a copy of that data along with information about how it is processed. You can exercise this right immediately and at any time using the "Export My Data" button on the Privacy & Data page. The export is provided as a JSON file containing all personal data held about you.

8.2 Right to Erasure

You have the right to request the erasure of your personal data where: the data is no longer necessary for the purposes for which it was collected; you withdraw consent on which processing was based; you object to processing and there are no overriding legitimate grounds; or the data has been unlawfully processed.

You can exercise this right immediately using the "Delete Account" button on the Your Account page. Deletion is permanent, cascades across all associated records (mood logs, watchlist, subscriptions, interactions, recommendation runs), and cannot be undone. Anonymised aggregated research data that cannot be linked to your identity may be retained.

8.3 Automated Decision-Making

VibePick does not make decisions that produce legal or similarly significant effects based solely on automated processing (GDPR Article 22). Film recommendations are generated

algorithmically for entertainment and research purposes and do not have legal or significant real-world effects on you.

9. How Your Data Is Protected

VibePick implements appropriate technical and organisational measures to ensure a level of security appropriate to the risk. Measures include:

- Passwords are hashed using bcrypt with an appropriate work factor. Plaintext passwords are never stored or transmitted.
 - Authentication uses JSON Web Tokens (JWT) with server-side validation. Tokens are stored only in browser localStorage.
 - All data in transit is protected by HTTPS/TLS encryption.
 - The backend uses parameterised SQL queries exclusively, preventing SQL injection.
 - Each authenticated endpoint verifies the requesting user's identity and enforces data isolation between users.
 - Database access is restricted to application-level queries; direct database access is not exposed.
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10. Consent and Withdrawal

Where VibePick relies on your consent as the legal basis for processing (specifically for mood logging and preference storage), you have the right to withdraw that consent at any time. Withdrawal of consent does not affect the lawfulness of processing carried out prior to withdrawal.

You may withdraw consent by:

- Deleting your account via Your Account > Delete Account, which permanently removes all personal data;

Your right to withdraw consent is unconditional. You will not be penalised for withdrawing consent. However, some features of VibePick may not function without the data that requires your consent (e.g. mood-based recommendations require mood log data).

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